



POLICE DEPARTMENT

October 11, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Genner Gomez
Tax Registry No. 930235
33 Precinct
Disciplinary Case No. 84932/09

The above-named member of the Department appeared before me on June 17, 2010, charged with the following:

1. Said Police Officer Genner Gomez, assigned to the 33 Precinct, on or about August 29, 2007 and September 26, 2007, did wrongfully and without just cause prevent, interfere or impede an official Department investigation in that, during the course of a homicide investigation, Officer Gomez was questioned on two separate occasions regarding his relationship with the victim, and Officer Gomez downplayed the extent of his relationship with the victim and minimized the frequency with which he had contact with the victim.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

The Department was represented by Daniel Maurer, Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Lawrence D'Angelico and Sergeant Reynaldo Padilla. Received in evidence as Department's Exhibit [DX] 1 was a seven page document relating to an Internal Affairs Bureau log made against the Respondent

Sergeant Lawrence D'Angelico

D'Angelico is a 15-year member of the Department assigned to the 52 Precinct. Formerly, he worked at the Cold Case Apprehension Squad where he investigated homicide cases. While there, he investigated the case of Mario Hidalgo who was murdered on February 5, 2006. The case was previously assigned to Detective Steve Heberling, now retired.

During his investigation, D'Angelico reviewed Heberling's notes which revealed that Hidalgo associated with "Flaco," a nickname for the Respondent. Heberling spoke to the Respondent to determine if he knew Hidalgo and to see what the extent of his relationship was with him. That was the extent of Heberling's contact with the Respondent.

On August 29, 2007, D'Angelico made contact with the Respondent to gather information about the case. D'Angelico asked him if he could give him details about Hidalgo and the Respondent informed him "that he really didn't know Mario and that he only hung out with him a couple of times." Thereafter, D'Angelico interviewed employees of a restaurant, Los Compadres, which Hidalgo frequented. He spoke to waitresses there as well as Hidalgo's brother-in-law, Michael Ortiz. He also spoke to an

individual named Jose Carlito. Based on those conversations, D'Angelico determined that the Respondent "hung out with [Hidalgo] more than he told me over the phone." He found this significant. D'Angelico specified that everyone he spoke to said that the Respondent "hung out" with Hidalgo every weekend at Los Compadres.

D'Angelico added that he also spoke to Hidalgo's mother who indicated that on one occasion, the Respondent was present when she prepared dinner at Hidalgo's house.

On September 26, 2007, D'Angelico contacted the Respondent again and confronted him with the information that he had discovered. He testified that the Respondent reiterated what he previously said, that he "really didn't hang out with him that much." When asked if his investigation was prolonged as a result of the Respondent's responses, D'Angelico said, "more or less if you have a victim and somebody hung out with them frequently, it kind of like stagnates it there may be information that's vital to the investigation that he may not know about." He affirmed that the Respondent's evasiveness was a red flag to him as a member of the Department.

During his investigation, D'Angelico also learned that the Respondent attended a party at Hidalgo's house. He also discovered that the Respondent went to the Dominican Republic and visited Hidalgo's mother. He learned this from Hidalgo's mother, father, and brother. He clarified that the Respondent went to a restaurant owned by Hidalgo's family in the Dominican Republic to "pay his respects." D'Angelico further recalled that when he spoke with Hidalgo's brother, Teofilio Hidalgo, he affirmed that the Respondent was a friend of his.

[During the course of his investigation, D'Angelico generated two 'Complaint-

Follow Up Informational Reports" (DD-5s) where he provided summaries of his two interviews with the Respondent. He stated that on August 29, 2007, he called the Respondent and "informed him I was conducting a homicide that occurred on 02-05-06. I stated if he knew the victim Mario Hidalgo and if he can give me any information regarding this matter. PO Gomez stated he met only two or three times and was introduced to Mario by a guy named Elvis. I informed PO Gomez if had [sic] any information call me and hung up." He also noted that when he contacted Heberling about the Respondent, he was told that Heberling "interviewed individuals that worked at Compadre Restaurant that stated the victim hang out with [sic] on a regular basis with an m/h named Flaco who is a Police Officer at the 33 pct." (DX 1)

D'Angelico also recorded his September 26, 2007 meeting with the Respondent. He stated that the "purpose of the meeting was to personally question PO Gomez's relationship with the deceased and any information he had pertaining to this matter."

D'Angelico noted that during the meeting he reminded the Respondent that he was investigating the homicide of Hidalgo and that he had spoken to him on the phone

a few months ago and had to clear up some statements he made to me. There are police reports documented of Mario and you (PO Gomez) hanging out together at the restaurant on numerous occasions. PO Gomez states that he told Detectives that originally interviewed him that he told them everything. PO Gomez stated an m/h named Elvis Vargas introduced him to Mario at Compadres Restaurant. PO Gomez would go to the restaurant after doing a 4x12, met up with Mario and friends of his. PO Gomez would meet up with Mario at the restaurant never walk in with him. Mario had a close friend named Carlito that knew him from the Dominican Republic since childhood. Carlito would also be in the restaurant with Mario. PO Gomez states he never hung out with these guys outside of the restaurant. Mario introduced his family who came to NY to visit Mario in 2005. I asked Gomez if he had ever visited Mario's family in the Dominican Republic. He replied he went on vacation to Dominican Republic in April of 2006. During his stay he went to Mario's family restaurant to give his condolences. PO Gomez states Mario wasn't

a flashy guy. Never wore expensive jewelry. When the bill came for the food Mario never flashed his money but would put his share of money towards the bill. PO Gomez states that Mario didn't own a car. I asked PO Gomez when was the last time he saw Mario. He replied, I believe on Friday late into the night. Then on Tuesday he got a call from Carlito stating I haven't seen Mario or heard from him. Let's go to his apartment and see what's going on. Went to the building and asked the super if he could open the door to the apartment. The super stated I need the person who is listed on the lease which was Mario's brother-in-law Michael Ortiz. After Mr. Ortiz arrived the super opened the door. PO Gomez states the apartment seemed ransacked, we stood there for a while and left. He was later informed that Mario was found dead stuffed inside a suitcase in the Bronx. PO Gomez states that he felt bad for what happened to Mario and was always willing to cooperate "] (DX 1)

On cross-examination, D'Angelico indicated that the Respondent lived at the corner of Post Avenue and 207 Street during the time that he conducted his investigation. He acknowledged that the restaurant Los Compadres was located in the Respondent's apartment building and was a place where Hidalgo "hung out." He agreed that the Respondent "hung out" with Hidalgo at this restaurant, in his building. This was confirmed by waitresses who worked there. D'Angelico testified that "three names that were always popping up in my investigation" were the Respondent, Jose Carlito, and Hidalgo.

D'Angelico obtained a subpoena to check Hidalgo's telephone records for the six month time period before his death. Both the Respondent's attorney and the Assistant Department Advocate stipulated that in that time period, there were 18 calls between the Respondent and Hidalgo. D'Angelico agreed that this was an average of three telephone calls a month between the Respondent and Hidalgo. He acknowledged that this was not an excessive number. D'Angelico never thought the Respondent was involved in Hidalgo's death and there was nothing in the investigation suggesting this. The

Respondent was not present when Hidalgo's body was discovered. D'Angelico recalled that when Hidalgo went missing, a few days before his body was discovered, the Respondent went to his apartment with Michael Ortiz and discovered the apartment ransacked. This occurred toward the end of August.

When he first spoke with the Respondent in August 2007, D'Angelico asked what his relationship was with Hidalgo. He agreed that the Respondent never denied knowing him and informed him that he had seen him a few times. He specified that he "hung out" with Hidalgo two or three times. He did not tape record the telephone conversation and he informed the Respondent that he was from the Cold Case Squad and investigating the death of Hidalgo. D'Angelico did not completely recall if he asked the Respondent open-ended questions, but recalled that he asked for information to which the Respondent replied, "I didn't really know him that much. I only hung out with him two or three times." His phone call with the Respondent lasted about three minutes.

D'Angelico reiterated that he inherited the file for this case in July 2007. It contained a collection of DD-5s and investigative reports which had been prepared by Heberling, the original investigator. Notwithstanding this, D'Angelico started his own file consisting of DD-5s and his notes (DX 1). His August 2007 telephone conversation with the Respondent was for the purpose of familiarizing himself with the investigation and because he had discovered a handwritten note made by Heberling which referenced the Respondent. D'Angelico agreed that it was correct to surmise that the Respondent met Hidalgo through a third party. He could not recall with specificity how long before Hidalgo's death the Respondent had been acquainted with him. D'Angelico agreed that his investigation was not about the Respondent's relationship with Hidalgo, it concerned

who murdered him. He was not really concerned with how long he knew Hidalgo.

Although D'Angelico agreed that the Respondent's responses did not materially effect the homicide investigation, he had to ask questions to clarify issues. He further agreed that nothing the Respondent said impeded the investigation from moving forward. Additionally, the Respondent did not provide any misleading information to divert D'Angelico's attention toward a particular person. He agreed that the Respondent did not provide any false names or fictitious locations and he never denied knowing or contacting Hidalgo.

Regarding his initial interview of the Respondent, D'Angelico reiterated that it was short. He had already gathered that the Respondent knew Hidalgo. He agreed that before his initial telephone call to the Respondent, he had already ruled him out as a subject or defendant in Hidalgo's homicide. D'Angelico then testified that he was unable to answer "yes" or "no" as to whether the Respondent was involved in Hidalgo's death.

Before his assignment to the Cold Case Squad, D'Angelico said that he worked in the Queens County District Attorney's Squad for seven years. While there, he worked on a number of complicated cases and investigations. He agreed that in an investigation, it is a fair premise to never exclude anyone. He acknowledged that it is acceptable to make reasonable assumptions based on the evidence at hand. D'Angelico was unable to say "yes" or "no" as to having excluded the Respondent before he contacted him, based on what he gleaned from the case file and in speaking to the original assigned detective.

D'Angelico asserted that his investigation was impeded even after his telephone conversation with the Respondent because "Once again, If I know somebody is hanging out with a victim of a homicide and he's not being forthcoming, it kind of raises my red

flag on why isn't he telling me the simple truth once I get that little sense over the phone that he wasn't being forthcoming, I said it's time to go see him or maybe interview other people before I see him " D'Angelico again expressed that he did not believe that the Respondent was involved in the homicide but stated that there was a possibility that he knew individuals who might have been " He agreed that this belief was based on his instinct

D'Angelico did not go to see the Respondent for a second interview until four weeks after his telephone call with him " When confronted with the length of time between the phone call and that interview, he asserted that he had to "build up information from everybody " He therefore delayed the in-person interview because he wanted to interview other individuals " He guessed that scheduling issues may have been responsible for the four week delay and agreed that it was not that pressing to see the Respondent after the phone call " D'Angelico said that at the time of this case, he was a detective " He never told his sergeant that the Respondent was being less than forthcoming and never asked his sergeant to order the Respondent to come to the detective squad to talk to him " D'Angelico could not recall when he notified the Internal Affairs Bureau (IAB) regarding this case, but believed that it was after a second interview of the Respondent

D'Angelico agreed that he did not contact IAB on August 29, the first time he contacted the Respondent " He acknowledged that he did not call IAB before September 27 " He agreed that he did not believe that the Respondent's position as a police officer was compromised between August 29 and September 27 " He reiterated that the Respondent offered his condolences to Hidalgo's mother in the Dominican Republic and

agreed this was not unusual. D'Angelico was not aware that the Respondent's friends, with whom he traveled to the Dominican Republic, were from the same town as Hidalgo's family. He was aware that the Respondent made a "side trip" during his vacation to pay his respects to Hidalgo's mother. D'Angelico agreed that he probably found this out just before or somewhat after the second interview of the Respondent.

No arrest has been made in this case. D'Angelico indicated that during his time in the Cold Case Squad, he was assigned to investigate roughly eight cases. He closed none of them. He did not know what the percentage was for closing cases in the Bronx Cold Case Squad. Although he was unsure, D'Angelico believed that the detective who assumed the Hidalgo case from him may have contacted him with a question about a person.

On redirect examination, after reviewing DX 1, D'Angelico noted that IAB was notified regarding the Respondent on October 15, 2007 by Captain Crowley. The 'log' reflected that the Respondent was not forthcoming to investigators regarding the homicide of Hidalgo.

On recross examination, when asked to cite the specific area that the Respondent was not forthcoming about, D'Angelico reiterated that employees of a restaurant indicated that the Respondent associated with Hidalgo more frequently than what he represented.

Sergeant Reynaldo Padilla

Padilla, a 12-year member of the Department, is assigned to IAB. On September 2, 2008, he was assigned this case involving the Respondent. The case was previously

assigned to a different investigator, Sergeant Patrick Fitzpatrick, who was transferred to another command. This case came to IAB through a "log" generated by the Cold Case Squad.¹

During his investigation, Padilla testified that he interviewed associates of Hidalgo. He stated that he interviewed Hidalgo's downstairs neighbor, Olga Navoa, and presented her with a photograph of the Respondent. She told Padilla that she had seen the Respondent with Hidalgo on two occasions. Navoa was unaware that the Respondent was a police officer and did not know him by any nicknames.

Padilla also spoke with Hidalgo's brother-in-law, Ortiz. Ortiz told Padilla that the Respondent and Hidalgo were friends and they would go out together to the Los Compadres Restaurant. He also learned from Ortiz that the Respondent was referred to by the nickname "Flaco." During an official Department interview of the Respondent, he confirmed to Padilla that "Flaco" was his nickname.

Padilla testified that he spoke with Hidalgo's mother, Alvica Espinal, via telephone. He contacted her in the Dominican Republic from his office in order to determine if information the Respondent provided in his October 29, 2008 interview was accurate. The Respondent had told him during the interview that he met her while at Hidalgo's apartment one night for dinner. Specifically, Padilla wanted to confirm the Respondent's claim that he had seen Espinal standing on a corner in the Dominican Republic while driving, recognized her, spoke with her and was invited to a restaurant to meet with Hidalgo's father. Espinal informed Padilla of a different account of events, "that she was at the restaurant and she was at the back of the kitchen. She was informed

¹ It should be noted that Padilla's investigation took place approximately one year after D'Angelico conducted his investigation.

by someone that Officer Gomez was at the establishment She came out She spoke to him for awhile At that point she stated that her husband, Mr Mario Hidalgo Sr was there She stated that they spoke about for about half an hour and then he left "

Padilla conducted a second interview of the Respondent to confront him with the discrepancies between his and the mother's statements The Respondent maintained his initial account of events and said he did not know why Espinal would have said otherwise

Telephone records from the Respondent were cross-referenced with Hidalgo's Padilla stated that there were 18 calls between Hidalgo and the Respondent between September 2005 and February of 2006, the last being February 1, 2006 Hidalgo's body was found on February 5, 2006

On cross-examination, Padilla admitted that no one sought to determine how long the Respondent had known Hidalgo He said no one was able to pinpoint the time frame Padilla agreed that the Respondent never denied knowing Hidalgo, in fact, the Respondent admitted to knowing Hidalgo from the onset, before D Angelico was involved in the investigation Additionally, he agreed that the Respondent admitted he was known as Flaco

Padilla testified that the purpose of IAB's investigation was to determine whether the Respondent stating that he only met Hidalgo once or twice impeded the investigation Because he was not investigating the homicide, Padilla was unable to say if the investigation would have been impeded had the Respondent disclosed he associated with Hidalgo " a thousand times " Confronted with why he did not ask the Respondent how long he had known Hidalgo for Padilla said that the question may have been asked but

he had no recollection. He agreed that he determined that the two had spoken 18 times over a six-month period.

Padilla stated that the Respondent and Hidalgo were usually seen at the Los Compadres Restaurant. He determined that the Respondent lived in the apartment building directly above the restaurant and the entrance was around the corner from where he lived. He affirmed that even before LAB was involved in this case, it was known that the Respondent lived in the building above the restaurant. Padilla did not determine how long the Respondent had lived in the apartment building.

The Respondent told Padilla that he met Hidalgo through a mutual friend named Elvis, who was never contacted during the investigation. Padilla did not recall if he asked Ortiz how long he had seen the Respondent associate with Hidalgo. He also did not ask any of the waitresses from Los Compadres that were interviewed how long they had seen the Respondent with Hidalgo before his disappearance. Padilla testified, however, that three of the waitresses said they saw the Respondent and Hidalgo together three to four times per week. Padilla stated that the Respondent stated in his official Department interview that he saw Hidalgo a couple of times in the restaurant.

The Respondent's Case

The Respondent testified in his own behalf.

Police Officer Genner Gomez

The Respondent, assigned to the 33 Precinct, was appointed to the Department in July 2002. Between September 2005 and the time of this trial, he resided at 130 Post

Avenue in Manhattan, an apartment building. The Respondent described this building as having a barbershop, a restaurant, check cashing establishment and a fried chicken eatery on the first floor.

The Respondent testified that he went to the restaurant, Los Compadres, "at least" four to five times weekly. He indicated that he is no longer allowed to patronize this locale as a result of this case. The Respondent affirmed his familiarity with Hidalgo, who he said he met through Miguel Vargas and Jose, both friends of his. They knew Hidalgo from growing up in the same town in the Dominican Republic. The Respondent was introduced to Hidalgo at Los Compadres.

The Respondent acknowledged that he was aware that Hidalgo was found murdered in February 2006. Prior to his murder, the Respondent had known Hidalgo for six to seven months. Hidalgo worked in a cell phone store on St. Nicholas Avenue and 181 Street. The Respondent once recalled having dinner at Hidalgo's mother's house; she was from San Francisco De Marcos, Dominican Republic. He testified that in the six-month period that he was acquainted with Hidalgo, he would see him "at least two to three times" weekly at Los Compadres. The Respondent stated that most people referred to him as "Flaco."

In February 2006, the Respondent said he was contacted by Hidalgo's brother-in-law, Ortiz, and his best friend, Steven Jose. They wanted to know if he had talked to Hidalgo because he had disappeared. He went to the apartment with the two men and Hidalgo was not there. The Respondent recalled that before he went to Hidalgo's apartment, his body had already been found and he was listed as a "John Doe" at the 50 Precinct.

In August 2007, the Respondent recalled being contacted by D'Angelico who told him he was calling from the Cold Case Squad. The Respondent asserted that he told D'Angelico that he knew Hidalgo through a mutual friend and that they would see each other at least two or three times a week. He denied ever telling D'Angelico that he had minimal contact with Hidalgo. The first conversation between the Respondent and D'Angelico lasted roughly three to five minutes and was over the telephone. Before this conversation, the Respondent said that he spoke with investigators from the 50 Precinct Detective Squad.

The Respondent admitted that he did not reveal to D'Angelico that he saw Hidalgo's mother in the Dominican Republic. He was not asked about it. He later revealed this fact in his official Department interview. The Respondent was interviewed on a second occasion by D'Angelico, in person, at his residence. It was not recorded. D'Angelico asked him for any information about Hidalgo in order to help him solve the case. He asserted that he told him, again, that he saw Hidalgo at least two or three times weekly. Again, he did not mention seeing Hidalgo's family while on vacation in the Dominican Republic, he was not asked. This second, in-person interview was longer than the first telephone interview. The Respondent estimated that it lasted about 15 to 20 minutes.

About a year after his second interview, the Respondent was interviewed by IAB on two occasions. He said he relayed the same information to them that he provided the Cold Case Squad and the 50 Precinct Detective Squad. He did not know if anyone had been apprehended for Hidalgo's murder and he has not been contacted by the Cold Case Squad since September 2007.

In the six months that he was acquainted with Hidalgo, the Respondent testified that they would speak on the telephone, but not that much because he worked the 4 00 p m to 12 00 a.m shift He explained that he would pass the Los Compadres Restaurant when he went home and would see Hidalgo there The Respondent's command, the 33 Precinct was located at 2207 Amsterdam Avenue, and he claimed it took him about 30 seconds to drive 30 blocks to work

On cross-examination, the Respondent indicated that he was unaware that the Los Compadres Restaurant was on the Department's "off-limits" list until his official Department interview Once he learned of this, he no longer frequented that restaurant

The Respondent affirmed at the time of Hidalgo's murder, he had been a police officer for four years He knew Hidalgo for about six or seven months before his homicide The Respondent agreed that he told Steven Jose and Ortiz that he had not heard from Hidalgo when they contacted him, but agreed that he had spoken to him on the telephone on February 1, 2006, four days before his body was found

The Respondent agreed that when he spoke to investigators, he did not reveal everything because he was not asked specific questions

FINDINGS AND ANALYSIS

The Respondent is charged with interfering with or impeding an official Department investigation in that during the course of a homicide investigation the Respondent was questioned on two separate occasions, August 29, 2007 and September 26, 2007, regarding his relationship with Mario Hidalgo, the victim of a homicide, and minimized the frequency with which he had contact with Hidalgo

At the outset it is important to point out that there were no audio recordings of the two interviews in question. The evidence presented to this Court of what the Respondent allegedly told investigators came from the somewhat limited memories of D'Angelico and Padilla and from the more detailed written summaries in the DD5s that D'Angelico generated during his investigation.

D'Angelico worked in the Cold Case Apprehension Squad where he investigated the murder of Hidalgo. The case was previously investigated by Heberling, whose notes revealed that Hidalgo associated with "Flaco" a nickname for the Respondent.

D'Angelico, in pursuit of leads to solving this cold case, contacted the Respondent by telephone on August 29, 2007 and asked him what was his relationship with Hidalgo. At trial D'Angelico stated that the Respondent told him that he "only vaguely knew him" and "hung out with Hidalgo two or three times." In his DD-5, D'Angelico noted that he asked the Respondent if he knew Hidalgo and if he "can give any information regarding this matter." In that report D'Angelico stated that the Respondent told him "he met only two or three times and was introduced to Mario by a guy named Elvis."

According to his testimony and his report, D'Angelico did not make it clear or specific to the Respondent as to what information he was looking for, nor did he even ask him any follow-up questions to bring out details of the Respondent's relationship with Hidalgo. Instead, he ended the conversation after hearing the Respondent's answer.

The Respondent, in contrast to D'Angelico's testimony regarding that telephone interview, testified that in his August 29, 2007 telephone interview with D'Angelico, he told him that he and Hidalgo were introduced through a mutual friend and that he and

Hidalgo would see each other "at least two or three time a week " He admitted that he did not mention meeting Hidalgo's mother or visiting her in the Dominican Republic because he was not asked

It appears to this Court that there was a misunderstanding in what D'Angelico thought the Respondent said and what he actually said D'Angelico heard over the telephone "two or three times" and believed that was the total amount of times the Respondent was referring to Yet, the Respondent has been consistent is stating that he met Hidalgo that many times a week

D'Angelico nevertheless believed that the Respondent was holding back information and wanted to speak to him in person to see if there was more information to be gained D'Angelico, however, did not feel the need to immediately re-interview the Respondent He decided to continue his investigation and interview friends and relatives of Hidalgo and employees of Los Compadres, a restaurant that Hidalgo frequented D'Angelico then learned from a waitress, and from a man named Carlito and also Hidalgo's brother-in-law, Ortiz, that the Respondent hung out with Hidalgo frequently He learned from Hidalgo's mother that on one occasion the Respondent was present at Hidalgo's house when she was preparing dinner

D'Angelico further learned from Hidalgo's mother, father and brother that the Respondent visited them in their restaurant in the Dominican Republic "to pay his respects " Hidalgo s brother, Teolfo, also confirmed to D'Angelico that the Respondent and Hidalgo were friends

What concerned D'Angelico was not that the Respondent was involved in the homicide, but that he was not forthright with him during that phone call D'Angelico

believed that the Respondent met with Hidalgo more frequently than he was admitting and was unknowingly privy to vital information that might be helpful in solving the crime

D'Angelico then met with the Respondent on September 26, 2007, to question him further about his relationship with Hidalgo. At trial D'Angelico stated that the Respondent again only told him that he 'really didn't hang out with him that much.' D'Angelico, however, noted a more detailed conversation with the Respondent in his DD-5 (DX 1). In that report D'Angelico noted that his specific "purpose of the meeting was to personally question PO Gomez's relationship with the deceased and any information he had pertaining to this matter." He further noted that he reminded the Respondent that he was investigating the homicide of Hidalgo, that they had previously spoken on the telephone and he wanted to clear up some statements that the Respondent had made to him in their phone conversation.

During this interview the Respondent provided detailed answers to D'Angelico's inquiries in that he told him that Elvis Vargas introduced him to Hidalgo at the Los Compadres restaurant. He also said that he would go to the restaurant after work where he would meet Hidalgo and the Respondent's friends and explained that he would only meet Hidalgo in the restaurant. The Respondent told him that Carlito would also be in the restaurant with Hidalgo.

The Respondent further told D'Angelico that Hidalgo introduced his family to him when they came to New York in 2005. When D'Angelico asked the Respondent if he ever visited Hidalgo's family in the Dominican Republic, he replied that he went on vacation there in April 2006 and went to the family's restaurant to give his condolences.

The Respondent also gave other details about Hidalgo. According to the report, he told D'Angelico that Hidalgo was not a flashy guy, he never wore expensive jewelry and never flashed any money. He told D'Angelico that the last time he saw Hidalgo was *the Friday before his death*. He added that the following Tuesday he received a call from Carlito telling him that he had not seen or heard from Hidalgo and they went to Hidalgo's apartment. Once at the apartment the super would not let them in because they were not on the lease. Hidalgo's brother-in-law had to be summoned to gain entry, whereupon they found that the apartment had been ransacked. The Respondent told D'Angelico that he was later informed that Hidalgo was found dead stuffed in a suitcase.

This Court was not informed how the Respondent could have been more forthcoming than he was during this interview in that he appears to have given a broad range of information to D'Angelico. Moreover, this Court has no way of knowing whether the Respondent would not have been this forthcoming if D'Angelico had interviewed him much sooner than he did after the telephone interview. The only information that the Respondent left out was the phone calls he made to Hidalgo—18 in a six-month period—but again this Court has no way of knowing if this was intentional because he was never asked about phone calls during his initial interviews.

In addition, D'Angelico claimed that his investigation was impeded not because of the Respondent's omission of his phone calls to Hidalgo, or from the information he gave during his subsequent interview, but because he was not forthcoming with more information during his initial telephone conversation where D'Angelico believed he told him that he only hung out with Hidalgo two or three times.

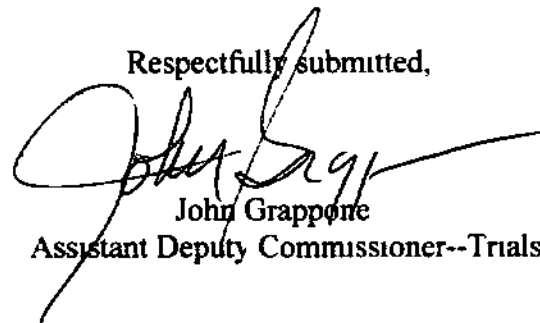
Padilla, an IAB investigator, was assigned the Respondent's case on September 2,

2008 He basically learned from his investigation what was already ascertained during D'Angelico's investigation a year earlier—that the Respondent knew Hidalgo, met with him in the restaurant three or four times a week and visited his family in the Dominican Republic Padilla testified that the purpose of IAB's investigation was to determine whether the Respondent's stating that he only met Hidalgo once or twice impeded the investigation

This Court finds that the Respondent's testimony was consistent with what he told investigators during his interviews This Court also finds that the Respondent, who was never considered a suspect in the homicide, did not have a motive to lie There was no evidence that he willfully left anything out of his first interview or any of his interviews He provided details as to his relationship with Hidalgo and he did not give false or fictitious names or locations to investigators In the opinion of this Court the Respondent has been forthright with his information to investigators and during his testimony at trial

Accordingly, the Respondent is found Not Guilty as charged

Respectfully submitted,



John Grappone

Assistant Deputy Commissioner--Trials

APPROVED
JUN 20 2011
RAYMOND W KELLY
POLICE COMMISSIONER